

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
SHELLEY CARR,

Plaintiff,

SUMMONS

Index No.:

-against-

The Basis of Venue is:
Location of IncidentTHE CITY OF NEW YORK, DETECTIVE NASSON
INNOCENT, Shield No. 2271, and POLICE OFFICERS
JOHN DOES# 1-10 (names and number of whom are
unknown at present), and other unidentified members of the
New York City Police Department,Plaintiff designates Kings
County as the place of trial.Defendants.
----- X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 6, 2015

Yours, etc.


JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
DETECTIVE NASSON INNOCENT, Shield No. 2271, Narcotics Borough Brooklyn,
North, One Police Plaza, Room 1100, New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
SHELLEY CARR,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE NASSON
INNOCENT, Shield No. 2271, and POLICE OFFICERS
JOHN DOES# 1-10 (names and number of whom are
unknown at present), and other unidentified members of the
New York City Police Department,

Defendants.
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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, SHELLEY CARR, by her attorneys, Jacobs & Hazan, LLP, as and for his
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of
defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section
1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United
States Constitution, and the common law and the laws of the State of New York. On February 6,
2014, at approximately 3:00 p.m., plaintiff, SHELLEY CARR, lawfully visiting her friend at
1627 St. Johns Place, Brooklyn, New York, was subjected to an assault, battery, and use of
excessive force by the defendant New York City police officers. Plaintiff was deprived of his
constitutional and common law rights when the individual defendants unlawfully assaulted,
battered, and used excessive force against plaintiff in violation of the Fourth, Fifth and
Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff SHELLEY CARR is a resident of the State of New York.

3. DETECTIVE NASSON INNOCENT, Shield No. 2271, is and was at all times
relevant herein, an officer, employee, and agent of the New York City Police Department.

4. DETECTIVE NASSON INNOCENT, Shield No. 2271, is and was at all times
relevant herein, assigned to Narcotics Borough Brooklyn North.

5. DETECTIVE NASSON INNOCENT, Shield No. 2271, is being sued in his individual and official capacities.

6. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

7. Police Officers John Does #1-10 are being sued in their individual and official capacities.

8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

9. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On February 6, 2014, at approximately 3:00 p.m., plaintiff was lawfully visiting her friend's apartment, located at 1627 St. Johns Place, Brooklyn, New York.

16. While plaintiff was inside her friend's apartment, numerous individuals burst through the front door in an extremely aggressive manner, causing plaintiff to be scared and fear for her safety.

17. As a result of fearing for her safety, plaintiff went out of a window and onto the fire escape in order to avoid confrontation with the intruders.

18. Unbeknownst to plaintiff, the individuals who came into the apartment were police officers.

19. One of the defendant police officers saw plaintiff go onto the fire escape and told her that he was a police officer and to stop moving.

20. Plaintiff complied with the defendant police officers request and immediately stopped moving.

21. The defendant police officer then climbed onto the fire escape with plaintiff and placed her in handcuffs.

22. After plaintiff was placed in handcuffs on the fire escape, suddenly and without any provocation or legal justification, one of the defendant police officers pushed plaintiff down one flight of the fire escape stairs to the ground below, causing immediate and severe pain to her back and neck.

23. The same defendant police officer who pushed plaintiff down the fire escape stairs then came down the fire escape after her, lifted plaintiff off the ground, and forcefully shoved plaintiff's face into a pile of snow.

24. Notably, at no point in time did plaintiff resist arrest in any way.

25. Thereafter, plaintiff was placed in the back of a police van, where she remained for 6 hours before being transported to the 73rd precinct.

26. Upon arrival at the 73rd precinct, plaintiff was fingerprinted, photographed, and detained in a holding cell.

27. Plaintiff's back was in so much pain from being pushed down the fire escape stairs that FDNY EMS treated plaintiff for her physical injuries at the 73rd precinct.

28. On February 7, 2014, in the early morning hours, plaintiff was transported to Kings County Central Booking.

29. On February 7, 2014, after approximately 30 hours in police custody, plaintiff was arraigned and released from custody.

30. As a result of the brutal assault on plaintiff by the defendant police officers, plaintiff was unable to go to work following the incident.

31. Moreover, after plaintiff was released from custody, plaintiff's back and neck were in excruciating pain from the assault by the defendant police officers.

32. As a result, plaintiff was forced to seek medical attention at Brookdale Hospital for her back and neck pain.

33. While at the Brookdale Hospital, plaintiff was evaluated and prescribed pain killers for her injuries that were inflicted as a result of the assault by the defendant police officers.

34. None of the individually named defendants intervened to prevent or stop the assault and battery of plaintiff or prevent further injury to plaintiff.

35. By failing to intervene in order to stop this assault and battery, these defendants demonstrated a deliberate indifference to a substantial risk of serious harm to plaintiff.

36. As a result of the assault, battery, and excessive force used against her, plaintiff suffered severe physical, psychological, and emotional damages.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

37. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.

38. The use of excessive force by defendants in pushing plaintiff down a flight of fire escape stairs after she was handcuffed, and then shoving her face into a pile of snow, was an objectively unreasonable physical seizure of plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

39. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

Assault

40. Plaintiff repeats and realleges paragraphs 1 through 39 as if fully set forth herein.

41. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

42. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

43. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Battery

44. Plaintiff repeats and realleges paragraphs 1 through 43 as if fully set forth herein.

45. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner pushed plaintiff down a flight of stairs and shoved her face in the snow without her consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Negligent Hiring, Retention, Training, and Supervision

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of correction officer duties on February 6, 2014 at the aforementioned location.

FIFTH CAUSE OF ACTION

Negligence

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. Defendants owed a duty of care to plaintiff.

52. To the extent defendants claim that the injuries to plaintiff's person by the defendant police officers was unintentionally caused and that the force used by the defendants against her was unintentional, then the defendants breached that duty of care by accidentally and negligently pushing plaintiff down the fire escape stairwell and shoving her face into a snow bank, and assaulting and battering plaintiff.

53. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

54. All of the foregoing occurred without any fault or provocation by plaintiff.

55. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

56. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

57. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.

58. By the actions described herein, the individually named correction officer defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff SHELLEY CARR. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

59. As a result of the foregoing, plaintiff was deprived of liberty, was assaulted, and sustained great emotional injuries.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION

Failure to Intervene

62. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.

63. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

64. Defendants failed to intervene to prevent the unlawful conduct described herein.

65. As a result of the foregoing, plaintiff was brutally physically assaulted.

66. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

67. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of *respondeat superior*.

JURY DEMAND

68. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff SHELLEY CARR demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
 May 6, 2015

By: _____

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TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
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 North, One Police Plaza, Room 1100, New York, New York 10038

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
May 6, 2015



STUART E. JACOBS